



File No.: EXP202306265

RESOLUTION FOR FILING OF ACTIONS

FIRST: On 12/03/2021, a document was submitted to this Agency by the CITY OF BARCELONA informing that the actions of AVANT FULLSTEP, S.L., with NIF B67468694 (hereinafter, AVANT), may lead to a breach of the provisions of the personal data protection regulations.

The reasons are as follows:

“[...]”

I.- BACKGROUND.

[...]

Among others, a total of 1,392 temporary licenses for special common use of public domain for the parking of mopeds and motorcycles for shared use were awarded in the municipality of Barcelona among the four operators (Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL).

[...]

7. The four companies Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL, also participated in the procedure for granting temporary licenses on a precarious basis and consequently submitted responsible declarations in which they confirmed their status as independent companies, and committed and accepted to comply with the conditions and obligations of the call. Through this procedure, a total of 854 temporary licenses for special common use of public domain were awarded to the four operators. Thus, the four operators are the awardees of a total of 2,246 temporary licenses for special common use of public domain for the parking of mopeds and motorcycles for shared use in an economic exploitation regime in the municipality of Barcelona.

[...]

9. By virtue of the above, to operate in public space, each company has a mobile application for users to register and use the bicycle and motorcycle rental service, which are parked in the public space of Barcelona. In these mobile applications, breaches have been detected by the four companies, as when a person registers in one of the applications of the four companies, the application recognizes the user and shares the data among the four companies, without the user having registered in the other applications of the companies or having consented (this point is detailed further below).

Additionally, we must add another company, REBY RIDES S.L, which is not an awardee of licenses, but which in the inspection reports dated December 1, 2020, and the report from the Mobility and Infrastructure Management dated December 29, 2020, which is mentioned later, demonstrates that it apparently also facilitates the rental of motorcycles from the four previous companies in its mobile application, and consequently facilitates the data of registered users in the previous applications, without prior consent from the users.

10. On August 27, 2020, and September 14, 2020, YEGO URBAN MOBILITY (definitive license awardee) sent emails to the corporation notifying that it had detected certain practices carried out by the four definitive license awardees that could constitute a violation of data protection regulations in relation to the regulatory decree and the call decree.

11. For this reason, the City of Barcelona conducted its own verifications on August 19, 2020, and an inspection report was issued documenting the detected breaches (...).

12. Likewise, on October 6, 2020, this Directorate received a letter from the company CITYSCOOT ESPAÑA, S.L., license awardee, stating that certain practices carried out by the four operators and definitive license awardees (Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL) could constitute a violation of competition regulations as well as data protection regulations (...).

13. In view of the above, the Mobility and Infrastructure Management again conducted its verifications, and on October 26, 2020, municipal officials personally and directly verified the mentioned actions carried out by Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL, and consequently, four inspection reports were issued, which are attached as ANNEXES 4, 5, 6, and 7 respectively, in which certain actions that could constitute a violation of data

protection regulations are highlighted and are detailed below. An inspection report issued on December 1, 2020, is attached as ANNEX 8, in which it is demonstrated that apparently, REBY RIDES, a company that does not hold licenses nor has participated in the procedure, also facilitates the rental of motorcycles from the four previous companies in its mobile application, and consequently facilitates the data of registered users in the previous applications, without prior consent from the users.

[...]

IV.- OBJECT OF THE COMPLAINT.

[...]

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In the inspections carried out on October 26, 2020, it was verified that when a user registers on the Iberscot application, they are automatically registered on the Oiz, Tucycle, and Avant applications, as indicated in the same application, since it does not require the necessary documentation again to register the new user, with the following message appearing in the screenshots of the Minutes: “You are already registered! We have detected that you have already registered on another collaborating platform. We will use the data you have added to expedite the process.” (...)

In the inspections carried out on October 26, 2020, it was verified that by entering €10 in the Avant application, which is added to the previous €0.22 in the account, and making a trip with this same application, the balance is reduced by €0.66, going from €10.22 to €9.56. (...)

It is noted that the balance, once the €10 is entered into the Avant application wallet, in the case of the OIZ company wallet, an additional €1 gift is added to the account as indicated by the promotion of the application itself (highlighted in green in the screenshot). At the same time, it is verified that having made only one trip with the Avant company with a charge of €0.66, the accounts of the other three companies are also reduced by €0.66 (see Annexes 4, 5, 6, and 7). It is verified that with the other three companies, Oiz, Tucycles, and Iberscot, no trips have been made. Nevertheless, the wallet balance has also decreased. (...)

3. In the privacy policy of the companies, users are informed that personal data is shared with entities of the same group. (...)

Likewise, in relation to the Inspection Report dated December 1, 2020, concerning the external company REBY RIDES, S.L., it is verified that:

The companies Avant, Oiz, Tucycle, and Iberscot share the databases of records and users with a fifth company: REBY RIDES SL (an external company that has not been awarded licenses).

[...]

Along with the complaint, the following documentation is provided:

- Copy of the Mayor's Decree dated July 4, 2019, which approves the regulation on the number and conditions of temporary licenses for special common use of public domain for the parking of bicycles, mopeds, and motorcycles for shared use in economic exploitation within the municipal term of Barcelona (BOPB 8/8/2019).
- Copy of the Mayor's Decree dated October 10, 2019, which approves the call for the procedure for granting temporary licenses for special common use of public domain for the parking of bicycles, mopeds, and motorcycles for shared use in economic exploitation within the municipal term of Barcelona (BOPB 11/10/2019).

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- Copy of the Inspection Report issued by the CITY COUNCIL that records the verifications carried out

on August 19 and 26, 2020, October 26, 2020, and December 1, 2020, in relation to the following entities: Tucycle Bikesharing, S.L., Avant Fullstep, S.L., Eco-logica Turismo Sostenible, S.L., Oiz Ridesharing, S.L., and Reby Rides, S.L.

- Copy of the Responsible Declarations signed by the following entities: Tucycle Bikesharing, S.L., Avant Fullstep, S.L., Eco-logica Turismo Sostenible, S.L., Oiz Ridesharing, S.L., in which they expressly declare that they comply with the conditions and obligations of the call.

- Copy of the Responsible Declarations of acceptance of the conditions to participate in the procedure for the precarious granting of temporary licenses for special common use of public domain for the parking of bicycles, mopeds, and motorcycles for shared use in economic exploitation in Barcelona, signed by Tucycle Bikesharing, S.L., Avant Fullstep, S.L., Eco-logica Turismo Sostenible, S.L., Oiz Ridesharing, S.L.

- Copy of the technical report, dated January 29, 2021, issued by the Mobility and Infrastructure Management, in which it requests to inform the competent authorities in data protection matters of the analysis included in its report and in the minutes, so that the corresponding investigations can be initiated, and in case a violation of the regulations by Avant Fullstep SL (Avant), Oiz Ridesharing SL (Oiz), Tucycle Bikesharing SL (Tucycle), and Eco-logica Turismo Sostenible SL (Iberscot) is confirmed, it requests the initiation of the corresponding license revocation file and the adoption of the corresponding sanctions or necessary measures.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on April 19, 2021, this complaint was forwarded to AVANT, so that it could proceed with its analysis and inform this Agency within one month of the actions carried out to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on April 27, 2021, as stated in the acknowledgment of receipt in the file.

On May 27, 2021, a response letter was received by this Agency in which it states:

"[...]

III. That, prior to the point-by-point analysis of the actions carried out by Avant proactively in response to this complaint, we consider it very relevant to inform the AEPD that Avant is a company dedicated to sustainable mobility, which operates the shared rental service ("sharing") of electric mopeds in the

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Spanish market. To this end, Avant provides its users with an app that allows them to register, view the different georeferenced vehicles on the city map, reserve them, and finally be able to travel, ending their journey at the designated point of their choice and paying the price for the service used.

In light of the data processing carried out by Avant to offer its service, and as the data controller, it has the appropriate data protection policy configured through various legal texts, available to the user at all times and when they proceed to start their registration; as well as an informed layered registration process, in order to comply with the obligations of information and transparency to the user.

IV. That, once the economic activity of Avant and the data processing it carries out have been described, we agree to highlight before the AEPD the circumstance in which the request by the complaining party occurs. Firstly, Avant received an initial request numbered E/10004/2020 last December 2020. In this request, Avant was asked to provide and explain what data processing it performs with its users, and whether it complies with the current law in this matter. After the Agency received Avant's allegations, analyzed them, and considered them, it proceeded to archive said request.

[...]

This second review that Avant has carried out has been an opportunity to make some corrections regarding minor errors:

- Avant users can consult both the Terms and Conditions and the Privacy Policy on the different platforms, that is, both from the app and from the corporate website. However, although they are available, through the review carried out we have facilitated the accessibility of these legal texts to users. Specifically, a direct link has been added from the website that allows clearer access to the Terms and Conditions, as well as to the Privacy Policy. We provide below a screenshot of Avant's website where the changes made can be seen.
- Avant has corrected some technical and configuration errors such as: activating the link to the legal text of the Privacy Policy where information can be accessed regarding which collaborative mobility platforms are in the city of Barcelona, and the removal of the last duplicated paragraph.
- Another of the updates and improvements that Avant has taken the opportunity to make is to add in the Terms and Conditions some aspects related to the services provided. The cost of certain services has been included in more detail, such as the cost for towing service, or specifying that the use of Avant's service with a provisional driving license is not permitted.

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[...]

VII. Regarding the facts that motivate the complaint.

- Operation of Avant through the application and in relation to the aggregation platform.

As we have stated in point III, Avant is a company dedicated to sustainable mobility, which operates the shared rental service ("sharing") of electric scooters in the Spanish market. Avant offers this service through various platforms, including: the SMOU app, provided by the municipal company BARCELONA DE SERVICIOS MUNICIPALES, SA (B:SM), and the Reby app, which is the one that concerns us due to the allegations raised in this complaint.

Reby Rides S.L. offers an aggregation service to Avant through its mobile app, a Mobility as a Service (MaaS) platform. In this way, users of the Reby application can geolocate and rent different shared mobility vehicles, including those from Avant.

For the user to be able to use the service, it is necessary that:

1. The user must register on the Reby platform, where they give consent for Reby to process their personal data.
2. If the user wants to use the services of any of the other operators integrated into the app, such as Avant, they will have to register as a user of the operator beforehand.

To facilitate this registration process for users of Reby's MaaS platform with Avant, the user is asked to give their prior consent for Reby to communicate certain personal data to Avant. On the other hand, in the section on obtaining personal data in Avant's Privacy Policy, as the Agency itself was able to verify, it contemplates the case of receiving data from third-party collaborating companies, such as Reby, always with the authorization of the interested party.

That is to say, it is acted upon in such a way that the user must always consent in advance to the communication of their data to other mobility operators, contrary to what has been alleged by the City Council of Barcelona. (...)

- Operation of the payment system for Avant users through the application and in relation to the aggregation platform.

Avant informs its users, in the Terms and Conditions, that user payments are managed through the entity Kernel Labs, S.L.U, located at Av. Meridiana, 89, Floor 4, CP 08026 Barcelona, Identification ES867169961, which acts as the data processor. Payments are managed through the provider Kernel, which provides greater guarantees as it complies with the highest standards.

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security standards and is certified by the Payment Card Industry (PCI DSS).

That is to say, making payments through this external entity allows the data linked to the payment for services to be processed securely and in compliance with regulations.

[...]

As we explained in response to the previous request from the Agency, Avant communicates some of the user's personal data, with prior consent, to other operators with whom it has a collaborative relationship. Among the data communicated is the user's payment "token," which is access to the numerical code or "wallet" in which the credit entered by the user personally is stored, which exclusively belongs to that user. This data communication is always done with the express prior consent of the user.

Regarding the Reby aggregation platform, an important part of the added value it provides to users is that it allows them to contract services from other operators, such as Avant, without having to change applications. Additionally, it allows users to consult information about the trips they have made from the application across any of the operators they have used. As we have mentioned, in order to use Avant's service from the aggregation platform, users must have previously registered through a simplified process. On the other hand, users of the aggregation platform can know the available credit on their digital card and the amounts billed for the use of the services integrated into the platform.

[...]

Along with the claim, the following documentation is provided:

- Copy of the Privacy Policy, dated 26/05/2021. The following points are noteworthy from this document:

"2. We are the data controller of your data.

The data controller of the User's data is Avant Fullstep, S.L (Avant), a company registered in the Commercial Registry of Barcelona, with NIF B67468694. The contact details for Avant are as follows:

o Postal address: Passeig de Gràcia, 118 Plta. Principal 08002 (Barcelona).

o Email: support@avant.fun

3. Data collection.

At Avant, we obtain our users' personal data through three channels, which we indicate below. Once we have obtained your personal data, we will process it to carry out the purposes indicated in point 4 of this Policy.

a) Data entered by the User. We receive and store all the information you provide through your user account. The categories of data processed are as follows:

o Identification data (name, surname, ID card or passport);

o Phone number;

o Email address;

o Driver's license;

o Economic data (credit card information).

b) Data obtained during the use of the service. We may obtain personal data related to your use of our services through our App. We will automatically collect and store information about the vehicle's location, the device's location, your IP address, a history of the trips you make in our vehicles, the identification code that we will assign you internally, dates and times when you access the App or the hardware, software, and internet browser you use, data about the operating system, as well as the version of the Application and language settings. Under no circumstances will Avant sell the collected data to third parties.

c) Personal data from third-party collaborating companies. When creating your User account, we will ask for permission to verify if you are already registered on other mobility platforms that collaborate with Avant in order to obtain the following data, necessary to provide you with our services:

o Identification data (name, surname, ID card or passport);

o Email address;

o Driver's license;

o Payment token. The token is a unique numerical code made up of similar digits that replaces the credit card data during the transaction. Therefore, your card data will not be transmitted, only this

secure code.

In this way, your registration process in our App will be much more agile, as you will not have to re-enter all the data manually. Avant will only have access to the data you have provided to our collaborators if you give us your prior authorization. Under no circumstances will that data be matched without your consent. You can consult the list of mobility platforms collaborating with Avant in the city of Barcelona at this link.

7. Data sharing.

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In Avant, we guarantee that your personal data will never be sold to third parties. However, we want to explain that some of your data may be securely transferred, in accordance with our obligations as data controllers, to third parties with whom we work to facilitate and improve our services.

We do not carry out international data transfers. All the data we maintain is stored on servers located within the European Economic Area, which therefore guarantees adequate levels of protection according to the applicable regulations.

The User's Personal Data may be transferred to the following recipients:

- o Entities of the Avant Group or that may become members of the Group in the future (understood as a group of companies in accordance with the provisions of Article 42 of the Commercial Code), or to any third party that acquires all or a substantial part of Avant's assets, primarily for management and administration purposes of the Group.

- o Public Administrations, Courts, and Tribunals: the personal information provided by Users will be transferred to the aforementioned entities whenever there is an applicable legal provision that obliges Avant to assist these entities for their own purposes. We will also transfer the data provided by Users when we consider such action to be reasonably necessary to comply with a judicial process; to respond to any legal claim or lawsuit; or to protect the rights of Avant or its clients and the public in general.

- o Service providers to Avant: third-party companies providing administrative, accounting, tax, and marketing services that act as data processors. In any case, the third parties with whom certain personal data of the User is shared will have previously demonstrated the adoption of appropriate measures for the proper protection of this data. These third-party service providers will have access to the personal information necessary to perform their functions but will not be able to use it for other purposes.

- o Payment entities: User payments will be securely managed through Kernel Labs, S.L.U, located at Av. Meridiana, 89, Floor 4, CP 08026 Barcelona, Identification ES867169961. Under no circumstances will they use Users' personal data for their own purposes or for purposes other than the payment management entrusted by Avant. We have a confidentiality agreement signed with this entity for this purpose.

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- o Traffic authorities for the purpose of identifying the driver in the event of an infraction;

- o Collaborative mobility entities of Avant: when you enter your personal data on the Avant App platform, you will be asked to authorize the transfer of such data to third-party collaborating companies with which we share the platform. The sole purpose of this transfer is to expedite the registration process in their respective applications in case you wish to register and use them in the future. This transfer will only occur with the prior and express consent of the user. The collaborating companies of Avant are those indicated in section 3 of this Privacy Policy."

- Copy of Avant's response to the transfer with reference number E/10004/2020 and the Resolution issued by this Agency, dated 25/02/2021, by which it was agreed to proceed with the filing of actions. THIRD: On 26/05/2021, a document was received by this Agency presented by A.A.A. in which a complaint is made against Avant for the communication of user data between different companies providing bikesharing services without informing them of such communications and not obtaining their consent. In this complaint, the following is stated:

The complaining party registered as a user of OIZ in October 2020, providing their personal data, a photograph of their ID, driver's license, a selfie, and banking data.

After the registration process, they accepted the privacy policy, which states the following:

"The personal data of the user may be transferred to the following recipients:

Entities of the OIZ Group or that may become members of the group in the future (understood as a group of companies in accordance with the provisions of Article 42 of the Commercial Code), or to any third party that acquires all or a substantial part of the assets of OIZ, primarily for management and administration purposes of the Group."

For this reason, they contacted Customer Service, which informed them about the transfer of their personal data to the following entities: Ecológica Turismo Sostenible, S.L. (IBERSCOT), Avant Fullstep, S.L. (AVANT), Reby Rides, S.L. (REBY), and TUCYCLE BIKE SHARING, S.L., with NIF B52553385 (TUCYCLE).

They add that they accessed the privacy policies of all the indicated entities, verifying that none informed about the recipients of the communication of personal data; that currently, OIZ, AVANT, and REBY still do not indicate to whom they transfer the data, while TUCYCLE and IBERSCOT do indicate it; and that they did not receive information from OIZ about the modification of the app and its privacy policy.

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It is noted that the new configuration of the app, at the beginning of the registration process, requests the user's consent for the transfer of their personal data to collaborating companies, but does not indicate the recipients and does not allow the completion of the registration process if such consent is not granted.

The claimant states that they went through the registration process in the IBERSCOT app, similar to that of OIZ, with the same sequence of screens, requested data, notices, etc. After checking the necessary checkbox to continue, they received the following message:

"After checking, we have detected that you are already registered in OIZ. You agree that this one communicates to Iberscot the following data to expedite the registration process, in order to provide you with our services: name, surname, email, ID/Driving License/Passport, payment token."

They provide a screenshot containing the above text and two buttons: one with the text "re-register" and another with the text "understood."

The claimant considers that the information must have already been shared, at least partially, for IBERSCOT to know that they were previously registered in OIZ.

They indicate that they tried to deny the permission by pressing the "re-register" button and found that they could not enter the data without authorizing the sharing, and that by opting for "re-register," the app returns to the home screen, where the same process begins, the same SMS verification, and the same screen. Without pressing the "Understood" option, the process cannot continue.

What has been stated is the same in the case of OIZ, IBERSCOT, AVANT, and TUCYCLE (they provide a screenshot with the options previously mentioned for accepting the Terms and Conditions and the Privacy Policy, and for accepting the verification of prior registration on other platforms), being somewhat different in the case of REBY.

Upon entering IBERSCOT, they verify that all their data is already loaded (they provide a screenshot with the data related to name, surname, email, phone number, address, and bank card).

Subsequently, they added balance in IBERSCOT to start using it, and this balance was also updated

in the OIZ app and the other indicated companies (they provide a screenshot with the balance update in OIZ).

Along with the complaint, they provide, among other documents, the following:

- Screenshots of the conversation that the claimant had with the "Customer Service" department of the OIZ application throughout October 2020; after having requested information about the entities transferring their personal data. From the responses provided by OIZ, we highlight the following:

"... We are several companies that work together, provide the same service, and collaborate with each other for the benefit of the customer. In case customer information is shared from one company to another, it will always ask for your authorization and consent to do so... The data is never transferred to any company that the user has not given their consent to..."

"The companies are as follows. Reby, OIZ, Iberscot, Tucycle, and Avant."

"It is a collaboration to offer a more convenient service; so if you download the app of any of these companies, you no longer need to validate your information in each of them."

- Two screenshots of the IBERSCOT and OIZ apps, both with the same structure and information. On this screen, the user is required to provide a phone line number and is offered two checkboxes to mark both options with the following text:

"By continuing, I confirm that I am 18 years old or older and that I accept that... (name of the entity: OIZ or IBERSCOT), in its capacity as the data controller

() Process my data for the provision of the contracted service according to the Terms and Conditions and Privacy Policy that I have read and accept"

() I consent that... (name of the entity: OIZ or IBERSCOT) checks if I am already registered on other collaborative mobility platforms to facilitate the registration process."

In both screenshots, both options are marked and the "Continue" button is activated.

- A copy of the section related to data transfer from the Privacy Policies of the transferring entities. The content of the AVANT policy (<https://avant.fun/pp/>) is as follows:

"7. Do we share your Personal Data with third parties?

- Yes, we share your Personal Data (i) with other entities of the AVANT FULLSTEP group, (ii) with external providers who help us with different issues related to the service, and (iii) with authorities or public bodies. In some cases, these third parties are located outside the European Union, but transfers of your Personal Data are carried out with adequate safeguards: either we have signed with these entities Standard Contractual Clauses approved by the European Commission or they are adhered to the Privacy Shield.

FOURTH: On 11/06/2021, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

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FIFTH: On June 18, 2021, this Agency accessed the Privacy Policy of AVANT, available at the web address <https://avant.fun/pp/>. The following points are noteworthy from the content of this document:

"3. Data Collection.

At Avant, we collect personal data from our users through three channels, which we indicate below. Once we have obtained your personal data, we will process it to carry out the purposes indicated in point 4 of this Policy.

1. Data entered by the User themselves. (...)

2. Data obtained during the use of the service. (...)

3. Personal data obtained from third-party collaborating companies. When creating your User account, we will ask for your permission to verify if you are already registered on other mobility platforms that collaborate with Avant in order to obtain the following data, necessary to provide you with our services:

- Identification data (name, surname, ID card or passport);
- Email address;
- Driver's license;

- Payment token. The token is a unique numerical code made up of similar digits that replaces the credit card data during the transaction. Therefore, your card data will not be transmitted, only this secure code.

In this way, your registration process in our App will be much more agile, as you will not have to re-enter all the data manually. Avant will only have access to the data you have provided to our collaborators if you give us your prior authorization. Under no circumstances will that data be matched without your consent. The collaborating mobility platforms of Avant in the city of Barcelona can be consulted here.”

7. Data Sharing.

At Avant, we guarantee that your personal data will never be sold to third parties. However, we want to explain that some of your data may be securely transferred, in accordance with our obligations as data controllers, to third parties with whom we work to facilitate and improve our services.

We do not carry out international data transfers. All the data we maintain is stored on servers located within the European Economic Area, which therefore guarantees adequate levels of protection according to applicable regulations.

The User's Personal Data may be transferred to the following recipients:

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- Entities of the Avant Group or that may become members of the Group in the future (...).

- Public Administrations, Courts, and Tribunals (...).

- Providers that offer services to Avant (...).

- Payment entities (...).

- Traffic authorities (...).

- Mobility entities collaborating with Avant: when you enter your personal data on the Avant App platform, you will be asked to authorize the transfer of such data to third collaborating companies with which we share the platform. The sole purpose of this transfer is to expedite the registration process in their respective applications should you wish to register and use them in the future. This transfer will only occur with the prior and express consent of the user. The collaborating companies of Avant are those indicated in section 3 of this Privacy Policy.”

On the same date, June 18, 2021, it was also verified that at the URL ***URL.1, the “Collaborating Mobility Platforms of AVANT in the city of Barcelona” are listed: AVANT FULLSTEP, S.L., ECOLÓFICA TURISMO SOSTENIBLE, S.L., OIZ RIDESHARING S.L., REBY RIDES S.L., and TUCYCLE BIKE SHARING, S.L.

SIXTH: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on July 5, 2021, this complaint was forwarded to AVANT for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on July 5, 2021, as evidenced by the acknowledgment of receipt in the file.

On August 5, 2021, this Agency received a written response stating:

“[...]

IV. Regarding the economic activity and data processing of Avant.

Avant is a company dedicated to sustainable mobility, operating the shared rental service (“sharing”) of electric scooters in the Spanish market. Specifically, it has been awarded a certain number of temporary special common use licenses for the public domain for the parking of shared scooters in the city of Barcelona. These licenses have been granted by the City Council of Barcelona.

To this end, Avant provides its users with an App that allows them to register, view the different georeferenced vehicles on the map.

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of the city, reserving them to finally be able to move, complete their journey at the designated point they wish, and pay the price for the service used.

[...]

V. Regarding the circumstances under which the Requirement is made by the Claimant.

First of all, we consider it important to highlight that Avant, along with other companies, is being subjected to indiscriminate persecution by competitors within the motorcycle shared mobility market in the city of Barcelona, with the names of the 10 companies licensed to operate the motosharing service in the city being public. Evidence of this indiscriminate persecution that Avant is suffering is that the Claim being responded to by this document is the third received in less than a year.

[...]

VI. Regarding the lack of substantiation and connection of the Claim document with Avant.

[...]

Although the Claim is directed at Avant, throughout the body of the document, the Claimant does not provide evidence related to Avant's registration process, (...). On the other hand, the only screenshot provided in the claim related to Avant consists of the first registration screen of the application in which, as can be observed, the user's own data is not filled in. In any case, as mentioned earlier, it has been verified that A.A.A. registered in Avant's application on May 24, 2021, at 9:20 AM, although they have never made any trips using the application.

[...]

VII. Regarding Avant's compliance with the regulations of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantees of Digital Rights.

Avant is a company dedicated to sustainable mobility, operating the shared rental service ("sharing") of electric scooters in the Spanish market. Avant offers this service through various platforms, including: the SMOU app, provided by the municipal company BARCELONA DE SERVICIOS MUNICIPALES, SA (B:SM), and the Reby app. Reby Rides S.L. provides an aggregation service to Avant through its mobile App, a Mobility as a Service (MaaS) platform. In this way, users of the Reby application can geolocate and rent different shared mobility vehicles, including those from Avant.

[...]

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VIII. Regarding the registration process in Avant and its compliance with current regulations.

Avant may carry out a transfer of the personal data entered by the user provided that, first, the user consents in advance; second, that such data is transferred to collaborating companies of Avant; and third, that the sole purpose of this transfer is to expedite the registration process in the respective applications of the collaborating entities in case the user wishes to register and use them in the future. All of this is duly explained in Avant's Privacy Policy, in a clear and understandable manner for users. We consider it important to highlight that these are not companies of the Avant group in the sense of Article 42 of the Commercial Code, and currently, no data is being transferred by Avant to any company in this capacity.

Regarding the entities to which user data may be transferred, always with their express and prior consent, this can be consulted at the following link;

<https://avant.fun/plataformas-de-movilidad-colaboradoras-en-la-ciudad-de-barcelona/> within the company's Privacy Policy.

The companies are: - IBERSCOT (Ecológica Turismo Sostenible, S.L.), - REBY (Reby Rides, S.L.) -

TUCYCLE (Tucycle Bike Sharing, S.L.) - OIZ (OIZ RIDESHARING, S.L.)

Additionally, we must point out that, as explained in section seven of Avant's Privacy Policy, information is not shared by default with potential recipients, but is only shared when the necessary circumstances occur, which are that during the registration process in the Avant app and at the moment the user registers in the app of another collaborating entity, express consent from the user has been obtained beforehand.

It is for all the aforementioned reasons that, contrary to what the Claimant indicated, it is always specified in cases where it occurs, who the recipient of the user data transfer made by Avant to another collaborating entity in which they wish to register is, and it consists of a specific transfer to facilitate the registration process for the user.

[...]

Along with the document, the following documentation is provided:

- Copy of the Privacy Policy in its version of 05/26/2021. Its content coincides with that mentioned in points two and four of the section "Facts."

SEVENTH: On October 6, 2021, in accordance with Article 65 of the LOPDGDD, the claim presented by the claimant was admitted for processing.

EIGHTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in the

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Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

1) By diligence carried out by this Agency on 18/03/2022, the Privacy Policy and the Terms and Conditions of service of the AVANT app were verified, extracted on 22/02/2022.

2) On 24/03/2022, this Agency received a response prepared by AVANT to the information request dated 28/02/2022:

- Regarding general issues, it states:

1. That AVANT is not part of a Group of companies as provided in Article 42 of the Commercial Code, but uses that expression in a commercial and not legal sense.

- Regarding the processing of personal data of users:

1. It provides a copy of the Record of Processing Activities in its version from August 2020 and updated in August 2021.

In the August 2020 version, in the details regarding the processing that AVANT carries out for the management, provision, and billing of the service, the categories of recipients to whom the data is communicated are indicated:

"Third-party mobility companies that provide their services jointly; City Council of Barcelona; public administrations, courts, and tribunals; entities of the Tucycle group; providers of administrative, accounting, tax, IT, and marketing services; payment entities; traffic authorities."

In the August 2021 version, regarding the same processing and data communications, it indicates:

"City Council of Barcelona; public administrations, courts, and tribunals; entities of the Tucycle group; providers of administrative, accounting, tax, IT, and marketing services; payment entities; traffic authorities."

- Regarding the Privacy Policy and Terms of use of the app:

- o It provides copies of the different versions of its Privacy Policy dated 29/07/2020, 25/01/2021, and 26/05/2021.

1. The version dated 29/07/2020 includes the following section regarding the communication of personal data and obtaining the same:

"3. Where do we obtain your Personal Data?

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The Personal Data that AVANT FULLSTEP obtains is from yourself, when you create a user account; (ii) from the information we obtain from your use of AVANT FULLSTEP services; and (iii) from social networks.

AVANT FULLSTEP needs to collect the Personal Data of its users to provide its Service in the most professional and secure manner.

What Personal Data do you share with AVANT FULLSTEP?

AVANT FULLSTEP collects and uses the information you provide to proceed with the registration, installation, access, and use of the AVANT FULLSTEP Application. Specifically, AVANT FULLSTEP requires the following personal data:

- Regarding users: Full name, password, email address, phone number, postal address, country, banking information, date of birth, location, driver's license, and national identification document.
- We will also use other information about you that we may come to know through your use of the Service: your location; your IP address; the trips you take; the identification code we assign you internally; your navigation on the Platform (dates and times you access, clicks you make, etc.) and the hardware, software, and internet browser you use.
- Finally, we will obtain information from different social networks, which will provide it to us if you have authorized it by accepting their corresponding terms and conditions.

What Personal Data does AVANT FULLSTEP collect automatically?

When you use AVANT FULLSTEP, we automatically collect certain information. This information includes your IP address, the date and time you accessed our Application, the hardware, software, or internet browser you use, and data about the operating system, as well as the version of the Application and the language settings.

Additionally, to provide you with the Service in the most effective way possible, we will identify your device, its settings, and specific characteristics, as well as location data, failures of our Application. Under no circumstances will AVANT FULLSTEP sell the collected location data to third parties.

7. Do we share your Personal Data with third parties?

Yes. We share your Personal Data (i) with other entities of the AVANT FULLSTEP group, (ii) with external providers who assist us with various issues related to the Service, and (iii) with authorities or public bodies. In some cases, these third parties are located outside the European Union, but the transfers of your Personal Data are carried out with adequate guarantees: we have signed with these entities Standard Contractual Clauses.

Approved standard contractual clauses by the European Commission or are adhered to the Privacy Shield.



Entities that assist us with various issues related to the Service. We ensure that all our providers who may have access to your Personal Data act confidentially, loyally, and in strict compliance with applicable data protection regulations. To this end, we require them to formalize specific agreements with us that regulate their use of your Personal Data. Some of our main providers are as follows:

Entities providing data processing services. At AVANT FULLSTEP, we rely on third parties to execute and process the payments you make in relation to the Service. These entities collect information from your credit or debit card (such as card type and expiration date), as well as other financial information we need to process your payment. We may also collect information such as your postal code, mobile phone number, and details about your transaction history. The processing of all this information is

necessary to process the payment. Finally, they provide us with other information about you, such as the unique token that allows you to make additional purchases using previously stored information. Entity providing storage services. This entity helps us securely store your Personal Data and other information related to the Service.

Entity providing survey or market research services. We rely on this entity to conduct statistical and market studies regarding the evaluation of AVANT FULLSTEP. As we mentioned in section 4, all Personal Data that we may share with them is pseudonymized, so when conducting their analyses, they will not know which person is behind each opinion.

☐

Authorities or public bodies for the performance of their functions. On some occasions, regulations require us to transfer your Personal Data to authorities or public bodies so that they can perform their functions. For example, tax or judicial authorities. In this way, they will use them for their own purposes.

Without prejudice to the fact that the country in which you are located may be outside the European Economic Area, we want to inform you that some of the aforementioned entities are located or may access your Personal Data from countries that, in the opinion of the European Commission, do not provide a level of protection for such data similar to that which exists in the European Union. We know that these countries do not provide an equivalent level of protection because the European Commission has not approved an "adequacy decision." In these cases, transfers of your Personal Data are carried out with the appropriate safeguards to protect its security.

☐

Payment entities: User payments will be securely managed through the entity EASY PAYMENT AND FINANCE, E.P., S.A., a payment entity authorized by the Bank of Spain with number 6849.

Established in accordance with Spanish legislation with NIF A85785905 and registered in the Madrid Mercantile Registry in volume 27,111, Folio 157, Section 8, Sheet M-488476, Registration 1st.

2.

The sections corresponding to the origin of personal data and the communication of data to third parties from the versions dated 25/01/2021 and 26/05/2021 coincide with the information outlined in points two and four of the "Facts" section of this initiation agreement.

o

Provides different versions of the Terms and Conditions of the Service dated 29/07/2020, 25/01/2021, and 26/05/2021.

☐

Regarding the operation of the AVANT APP:

1.

AVANT states that it cannot carry out the test requested by this Agency in the version of the APP that was used on 19/08/2020 nor during E/1004/2020 due to technical impossibility, as the API-REST used during that period is obsolete and no longer maintained.

2.

Regarding the current version of the app, it states the following:

o

The registration process for a new user (Test conducted on 24/02/2022).

1.

On the first screen of the registration process, where the phone number is entered, there is a single checkbox (unchecked by default) with the following text: "Process my data for the provision of the contracted service according to the Terms and Conditions and Privacy Policy that I have read."

2.

After entering the confirmation code sent via SMS, a user profile is created in the database with the following fields:

a. User_id: unique identifier.

b. Created_at: date and time of creation.

c. Phone_number: mobile phone number with which the user registers.

d. Company: Avant.

e. Payment_processor__token and email: empty.

f. Consent_from_reby, driving_licence, and national_id: shows an "f" (false).

3.

On the next screen, the user is asked for their location with the following text: "Allow Avant to access the location of this device?" with two options "Deny" or "Allow." If affirmative, they must enter their address.

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of email and, subsequently, the available vehicles in your area appear.

4.

To be able to drive a vehicle, it is required to enter the identity document and driving license, as well as verified payment method. This data is incorporated into the database in the sections: national_d, driving_license, and payment_processor__token.

o

Data sharing with other Operators

1.

AVANT clarifies that there is no data communication with other collaborating mobility companies, as consent cannot currently be requested from its app. This change occurred in August 2021.

2.

AVANT acknowledges that it receives data communications from Reby's mobility aggregation service. In this case, communication occurs when the user voluntarily authorizes the transfer of their personal data through Reby's aggregation service to be able to drive AVANT vehicles.

o

Consents granted or not granted by 200 real users

from 19/08/2020 to date.

1.

Screenshots of AVANT's database are provided, which include the following descriptive fields:

a.

User_id: user identifier.

b.

Consent_timestamp: moment when consent is obtained.

c.

Consent_from: means by which consent is obtained. Within this, the following values may appear:

i.

Consent_from_co_app: consent obtained before the decision not to share personal data among mobility operators.

ii.

Consent_from_reby_app: consent obtained through the Reby app.

iii.

Other: users who, being solely AVANT users, have not had to provide their consent.

☐

Regarding the data processing service agreements:

1.

A copy of the data processing service agreement signed by AVANT (data controller) and REBY (data processor) is provided, dated 03/03/2020. The agreement stipulates that the data processor will execute the following services, among others: the provision of the platform and App service to the data controller and maintenance services for the Platform and the App.

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3) On 26/04/2022, a diligence carried out by this Agency on 04/03/2022 regarding the user registration process of the AVANT app is incorporated into the inspection proceedings up to the step that requests the entry of the identity document and driving license.

4) On 06/05/2022, this Agency receives a response prepared by AVANT to a second information request dated 11/04/2022:

□

Regarding the operation of the REBY APP:

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Data sharing with other Operators

1.

AVANT confirms that the mobility operators with whom data was shared were REBY, OIZ, IBERSCOT, and TUCYCLE. Specifically, the following: name, surname, mobile phone, email, ID card or passport, driving license, and payment token.

2.

AVANT clarifies that the sharing of personal data began on 04/08/2020 and ended on 16/08/2021.

3.

Regarding the security measures implemented to prevent an operator from accessing the data of a user registered with AVANT when that user did not provide their consent for it. In response to this issue, the aforementioned entity reported as follows:

“The main basis is that the interface with the user (frontend) and the data management platform (backend) communicate securely and ensure security. To guarantee these points, AVANT has a method based on the generation of a session token that is generated each time a user logs in to AVANT. This session token is generated at the moment of identifying the user and unequivocally relates the user to a company. That is, the session token of the same person across different operators is different.

The session token is passed as an HTTP header in all requests to the API made by the AVANT app against the backend. The backend checks the validity of the token and rejects the connection if the validation fails. If the token is considered correct, an automatic mechanism injects the user identifier and the AVANT company identifier into the context of the HTTP request of the backend.

All execution flows of the backend will use the injected user and company identifier in the context whenever a query on the database needs to be made.

The context mechanism is built on the native “context” library of the Go programming language. (<https://pkg.go.dev/context>). Therefore, we have absolute confidence that the contexts are perfectly isolated between the different API calls.

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Therefore, it is guaranteed that the information related to a user in one company is not mixed with another company. For example, when a person in AVANT requests to view their travel history or payment history, the information returned is related to the session token, which intrinsically contains the identifier of the user and company for which information is requested.”

o

Consents granted to date:

1. AVANT informs that a total of 909 users initially registered in its app and were subsequently imported by other operators when the user had given their consent.

2. It provides a list of all consents of the type “consent-from-co-app” where there are 9235 records as

of 20/03/2022 in the field "consent_timestamp".

3. AVANT confirms that the consent type "consent-from-co-app" is the current designation given to the consents prior to the change made on 16/08/2021. According to AVANT, the purpose of that consent was "for our company to be authorized to carry out the verification regarding whether the user was already registered with any of the other collaborating mobility operators. This led to streamlining the registration process by importing the user's data if they had already registered with one of the other operators."

4. It provides screenshots of the registration process in the old version of the app corresponding to the referred consent. In the first of the screens, there are two checkboxes with the following texts:

"() Process my data for the provision of the contracted service according to the terms and conditions and privacy policy that I have read and accept"

"() I consent that Avant checks if I am already registered on other collaborative mobility platforms to facilitate the registration process."

And a "Continue" button at the bottom of the screen.

In the second screen, it informs:

"Almost there! After checking, we have detected that you are already registered with Reby. You agree that this communicates to Avant the following data to expedite the registration process, in order to provide you with our services: name, surname, email, ID/Driver's license/Passport, payment token. We remind you that you can exercise your rights as described in our Privacy Policy."

At the end of the screen, the user is offered the options "Register again" and "Understood!".

NINTH: By Resolution dated 14/10/2022, the expiration of the prior investigation proceedings mentioned in point five of the section "Facts" was declared, due to the passage of twelve months from the admission of the complaint without a sanctioning procedure initiation agreement being issued.

In the same resolution, it was also agreed to open new investigation proceedings and incorporate into these new proceedings the documentation that integrates the prior proceedings that are declared expired.

TENTH: In the new prior investigation proceedings agreed upon:

1) On 21/10/2022, a diligence carried out by this Agency on 27/06/2022 was incorporated into the inspection proceedings, relating to the Announcement of the Mayoral Decree (21/D/2019-2142), dated 10/10/2019, which calls for the procedure for granting temporary licenses for the special common use of public domain for the parking of bicycles, mopeds, and motorcycles for shared use in an economic exploitation regime in the municipal term of Barcelona.

2) By diligence carried out by this Agency on 27/02/2023, it was verified that, after attempting to register a user in the AVANT app and entering the mobile number while accepting the conditions, the necessary SMS to continue with the registration process was not received. Screenshots are provided.

3) Due to the written complaint mentioned in points one and three of the section "Facts," prior investigation proceedings were also carried out against the entity REBY, within the framework of which an inspection was conducted on 07 and 08/03/2023. During this inspection, the representatives of the mentioned entity made the following statements, which are recorded in the respective Inspection Act, which was signed by all participants:

"2.1. They provide all the technological platform, including the development of the mobile APP and the associated database, to the operators ECO-LÓGICA TURISMO SOSTENIBLE, S.L. (hereinafter IBERSCOT), OIZ RIDESHARING, S.L. (hereinafter OIZ), TUCYCLE BIKESHARING, S.L. (hereinafter TUCYCLE), and AVANT FULLSTEP, S.L. (hereinafter AVANT) who provide a mobility service in the city of Barcelona.

(...).

2.2. Regarding whether the operators IBERSCOT, OIZ, TUCYCLE, AVANT continue to provide service, they state that they no longer provide service since February 16, 2023.

2.3. (...).

2.4. Currently, REBY has completely ceased its activity.

2.5. In relation to the contracts for the service of the technological platform and APP, including the aggregation service, provided by REBY to the operators, they provide these contracts, which are attached to this Act as Doc 3.

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2.6.

That they are not aware that the operators may have collaboration contracts among themselves in the context of the service provided by REBY.

2.7.

That there is only one data processing agreement by REBY, which has already been provided to the Agency previously.

Regarding the access of the operators to the database and associated query tools, they state:

2.8.

That REBY only provided each operator with reports containing aggregated or statistical data on the usage of the fleet of the respective operator. That they cannot provide any request from the operators regarding those reports.

2.9.

(...).

2.10.

That the respective operators did have direct access to the database query tools (...). However, through these tools, they only had access to their own users.

2.11.

(...).

[...]

Regarding the sharing of data among all operators:

2.14.

That all tables in the database are common to all operators.

2.15.

That the person accessing the data in REBY as a service provider to the operators is the same person accessing it on behalf of REBY providing its services as an independent operator.

2.16.

That prior to August 2021, there was only 1 record in the database for each user. All operators accessed this unique record, but only once the user had given permission in the APP of each operator.

2.17.

That after August 2021, there was 1 record in the database for each user and for each operator in which they were registered. During the migration, the unique records per user that existed previously had to be forcibly replicated as many times as there were operators in which they had registered.

2.18.

That, in theory, and from the perspective of access permissions to the database, all APPs of all operators including REBY could access the complete database both before and after August 2021.

Regarding consent for the sharing of user data among the operators:

2.19.

That prior to August 2021, a user was not allowed to register if they did not give consent to check if their phone number had already been registered with any operator and, if so, to import their data to the operator they were registering with. The reason is that there was only one unique record per user in the database that all operators needed to access. A user is exclusively determined by the phone number with which they registered. In the software, it was not possible to define different users associated with the same phone number.

2.20.

That regarding the first screen of the operators' App where it states: "I consent for [OPERATOR] to check if I am already registered on other collaborative mobility platforms to facilitate the registration process." That this box had to be checked forcibly to continue with the registration process.

2.21.

That regarding the second screen of the operators' App where it states "After checking, we have detected that you are already registered with [include name of the Operator]. You agree that this operator communicates the following data to Iberscot to expedite the registration process, in order to provide you with our services: name, surname, email, ID/Driver's license/Passport, payment token. We remind you that you can exercise your rights as described in our Privacy Policy." And there are two options; one with the text "Register again" and another with "Understood!". That by clicking on "Understood", consent was indeed registered. If "Register again" was clicked, it returned to the initial screen where the phone number is entered to receive an SMS.

2.22.

That they do not remember what the process was for the REBY App.

2.23.

That prior to August 2021, therefore, the five operators automatically shared all data of registered users, if these had previously given consent to import their data, due to the existence of 1 unique record in the database.

2.24.

That prior to August 2021, the "importation" of data from other operators was not such, but rather it was actually allowing access to the unique record of that user existing in the database.

2.25.

That, prior to August 2021, REBY also accessed the unique record of a user just as the other operators did. They do not know where the user consents for this access by REBY are located.

2.26.

That, before August 2021, the Apps of all operators, including REBY, functioned the same way, as they recall, that is, if a user wanted to register and was already registered with another operator, they always requested consent.

2.27.

That before August 2021, when a user used the aggregation service, REBY did not transfer that user's data to the operator with which they wanted to drive the vehicle, assuming that the user was already registered with that operator. And that, in this case, REBY did not collect new consent. They cannot provide a screenshot of the REBY app with the user's interaction in this case.

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due to technical impossibility.

2.28.

That, after August 2021, the option for "importing" user data when a user was registered with another operator was no longer available, so the user had to complete the entire registration process. That no operator requested the user's consent during the registration process, only REBY to provide the aggregation service. That where dates of consent after August 2021 are recorded, it is because they actually refer to consents given from the REBY app for the use of the aggregation service.

2.29.

That the only table they are aware of that stores consents is called data_sharing_consent. That the description of the fields in this table is:

id: unique identifier of the consent

timestamp: date of consent and date the record is created.

origin_company_user_id: user who gives the consent (equivalent to their phone number)

destination_company_id: company to which consent is given to access the data.

type: they do not know its meaning and it always has the value 1.

2.30.

That they do not know where the consents given from the REBY app are located.

[...]

During the indicated inspection, the Services of this Agency accessed the database that supports the

mobility service provided by REBY as an operator, the mobility aggregation service that REBY provides, as well as the technological platform and mobile app with which the other operators operate. Through this access, it is verified:

1.

That the total number of users is:

REBY

1,034,859

IBERSCOT

13,023

OIZ

14,657

TUCYCLE

10,604

AVANT

15,557

2.

That the data associated with a user registered after August 2021 with the different operators, excluding REBY, may vary, including the payment token and balance.

3.

That there are consents in the consent table (...) for the operators TUCYCLE, AVANT, OIZ, IBERSCOT. It is verified that there are no records associated with REBY.

4.

That the oldest consent date is 29/05/2020 08:44.

5. It is verified that:

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a. For the operator AVANT, the first consent is dated 29/05/2020 and the last is dated 14/02/2023.

b. The oldest consent given from IBERSCOT is dated 30/06/2020 and the most recent is dated 12/02/2023.

c. The oldest consent given from OIZ is dated 30/06/2020 and the most recent is dated 12/02/2023.

d. The oldest consent given from TUCYCLE is dated 30/06/2020 and the most recent is dated 13/02/2023.

6. That the way to know which operators a given operator has shared data with, or even if they have shared it or not, is with the following procedure:

For a specific user, one must search in the sessions table for the first sessions of that user for each operator, that is, when was the first time that user used the app of each operator. If the first session of all is from the operator in question, it is inferred that they must have "shared" the data with the other operators whose first session for that user is later. It is verified that the date of the first session in an operator coincides with the date of the consent given from that operator.

4) By diligence carried out by this Agency on 24/03/2023, the distances between different geographic coordinates are verified.

In the corresponding report of preliminary investigation actions, the Inspection Services of this Agency conclude the following:

"3. It is verified that currently neither the REBY App nor the AVANT App allow the registration of new users. REBY states that it has completely ceased its activity and is in a pre-insolvency situation. The current situation of AVANT in this regard could not be verified, as it was not requested.

4. Regarding data sharing between operators and consent, REBY states that:

a. Prior to August 2021, there was only one record per user, which all operators had access to.

Therefore, all data associated with the user was shared completely and at all times among all

operators, including, among others, name, surname, mobile phone, email, ID or passport, driver's license, payment token, balance.

b. Prior to August 2021, the consent given by the user is not for importing data since nothing is imported; it is for accessing the user's unique record.

c. That, prior to August 2021, a user was not allowed to register if they did not give consent to check if their phone number had already been registered with any operator and, if so, to "import" their data to the operator they are registering with. Given that AVANT informs that they cannot...

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Due to technical issues with the old versions of their App, it has not been possible to ascertain whether, to complete the registration in the App, it was a requirement for the user to grant consent for data matching.

d. The sharing of data among operators began, as stated on 04/08/2020; however, it is verified that the oldest consent is dated 29/05/2020. It is also stated that data sharing existed until August 16, 2021. It has been confirmed that, on a date after August 2021, the AVANT app no longer collected consents.

8. There are deficiencies in the information provided to users in the privacy policy:

a. On July 29, 2020, users were not informed about the sharing of data with other operators nor which ones. It is noted that on January 25, 2021, they did provide such information.

LEGAL GROUNDS

I

Competence and applicable regulations

According to the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of the GDPR and as provided in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to issue this resolution.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Possible infringements

On 06/11/2020, a complaint was received by this Agency directed against the entities TUCYCLE, AVANT, OIZ, and IBERSCOT for the transfer of personal data of users who register in the corresponding mobile "apps" to access the vehicle rental service. This complaint warns that when a person registers in one of the "apps" of these entities and subsequently installs another one, the second recognizes the user and reuses the data provided by the other "collaborating platform" in order to "streamline the process."

The same complaint pointed out that none of these entities informed the user that their personal data was shared with third companies, which were shared among the mentioned entities.

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This complaint led to the proceedings indicated with the number E/10004/2020, in which, by resolution dated 25/02/2021, it was agreed to archive the complaint in question as the initiation of a sanctioning procedure was not warranted since the complaint had been addressed.

The archiving of proceedings was agreed after following the procedures regulated in Article 65.4 of the LOPDGDD, provided for evaluating whether or not to admit the complaint for processing. This article states the following:

“4. Before resolving on the admission of the complaint, the Spanish Agency for Data Protection may refer it to the data protection officer designated by the data controller or processor, or to the supervisory body established for the application of the codes of conduct for the purposes provided in Articles 37 and 38.2 of this organic law.

The Spanish Agency for Data Protection may also refer the complaint to the data controller or processor when no data protection officer has been designated or when they are not adhered to extrajudicial conflict resolution mechanisms, in which case the data controller or processor must respond to the complaint within one month.”

In turn, Article 37 "Intervention of the data protection officer in case of complaint before the data protection authorities." of the LOPDGDD cited in the previous provision establishes:

“1. When the data controller or processor has designated a data protection officer, the affected party may, prior to submitting a complaint against them to the Spanish Agency for Data Protection or, where appropriate, to the autonomous data protection authorities, address the data protection officer of the entity against which the complaint is made.

In this case, the data protection officer shall communicate to the affected party the decision that has been adopted within a maximum period of two months from the receipt of the complaint.

2. When the affected party submits a complaint to the Spanish Agency for Data Protection or, where appropriate, to the autonomous data protection authorities, they may refer the complaint to the data protection officer so that he responds within one month.

If after this period the data protection officer has not communicated to the competent data protection authority the response given to the complaint, that authority shall continue the procedure in accordance with the provisions of Title VIII of this organic law and its development regulations.

3. The procedure before the Spanish Agency for Data Protection shall be that established in Title VIII of this organic law and its development regulations. Likewise, the autonomous communities shall regulate the corresponding procedure before their autonomous data protection authorities.”

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According to the aforementioned, the indicated mechanism prior to the admission of claims filed with the Spanish Agency for Data Protection consists of forwarding them to the Data Protection Officers designated by the data controllers or processors, or to them when they have not been designated, so that they can analyze the claims and respond within a month.

Thus, when the actions taken in light of the claim address the issues raised by the claimant and the responsible entity adopts the necessary measures to align its actions with the requirements set forth in data protection regulations, this Agency may decide not to continue the procedure following the admission of the claim, as established in Title VIII of the LOPDGDD, which contemplates the possibility of conducting preliminary actions and initiating a sanctioning procedure, if appropriate.

This occurred in the aforementioned precedent (E/10004/2020), in which the filing of the claim was agreed upon, considering the response given by the entity AVANT.

As stated in the aforementioned resolution for filing actions, dated 25/02/2021, in its response to the transfer procedure, dated 18/02/2021, AVANT informed that it had made modifications to its privacy policies to inform about the transfer of user data to third-party collaborating companies with which it shares a platform.

Similarly, it reported that it was in the process of incorporating a mechanism in the user registration process in its mobile application to collect their consent for obtaining their data from other collaborative mobility platforms, with the aim of facilitating the registration process.

Once the reasons presented were analyzed, it was considered that the initiation of a sanctioning procedure was not warranted, as the processing of the claim in accordance with the provisions of Article 65.4 of the LOPDGDD led to the resolution of the issues raised, without the need to clarify administrative responsibilities within the framework of a sanctioning procedure. This is without prejudice to the Agency, applying the investigative and corrective powers it holds, being able to carry

out subsequent actions related to the data processing referred to in the claim.

Shortly after the resolution that concluded the previous actions was issued, on 12/03/2023, this Agency received a letter from the CITY COUNCIL OF BARCELONA, which included a technical report, dated 29/01/2021, from the Mobility and Infrastructure Management. This letter reports the same factual circumstances already analyzed in the aforementioned precedent, regarding the communication of user data between the different companies providing bikesharing services, for not informing their users of such communications and for not obtaining their consent. A fifth company, Reby Rides, S.L., is also reported for sharing the databases of records and users without their prior consent.

Furthermore, the facts that motivate the letter in question occurred during a period.

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prior to the issuance of the resolution to archive file number E/10004/2020. Specifically, the verifications were carried out on the following dates: 10/08/2020, 26/10/2020, and 01/12/2020.

Subsequently, a complaint was received by this Agency filed by A.A.A. on 26/05/2021 against the same entities and Reby, in which the same facts were reiterated, specifically, the lack of information regarding the data communications of users between the different companies, as well as the failure to obtain their consent.

In both cases, it was deemed appropriate to admit the written submission and complaint for processing in order to carry out the necessary verifications regarding the information received from AVANT.

Thus, it was agreed to open preliminary investigation proceedings to verify whether the measures reported by AVANT in that precedent were implemented effectively and adequately.

These proceedings have confirmed that the involved entities shared users' personal data from the beginning of their activity in the city of Barcelona in the summer of 2020, without the consent of the affected individuals and without properly informing them about such personal data processing, which was indeed foreseen in their Register of Processing Activities.

The entity Reby, which provided the necessary technological platform for the service to users, has acknowledged that there was only one record per user in the database, associated with their phone number, to which all operators had access. This entity stated that such access was only granted when the user had consented, but also clarified that a user was not allowed to register if they did not provide their consent to check whether their phone number was already registered with another operator and, if so, for the operator with which they were registering to access the only existing record of that user in the database; and that this was due to the software not allowing the definition of different users associated with the same phone number.

Regarding the information provided to users, the Inspection Services verified that initially users were not informed about this "sharing" of data with mobility entities collaborating with AVANT, although the details of the recipients of the information were included in the versions of AVANT's Privacy Policy dated 25/01/2021 and 26/05/2021. The first of these versions is prior to the resolution to archive issued in file E/10004/2020 and to the document from the AYUNTAMIENTO DE BARCELONA, while the second is simultaneous to the filing of A.A.A.'s complaint.

Notwithstanding the above, it is recorded in the proceedings that the entity AVANT informed the Inspection Services that, following the requests from this Agency and the modifications made to simplify the procedures, as of 16/08/2021, they ceased to check whether a user was registered with any of the other collaborating mobility entities and stopped the data communications, with no evidence to the contrary existing in this regard.

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On the other hand, the Inspection Services verified that, on a date subsequent to August 2021, the AVANT mobile app no longer collected consents, that during the user registration process, consent for the communication of data to third parties was not required, but only for the processing of data necessary for the provision of the service; that its Privacy Policy did not contain any reference to the sharing of data with other collaborating mobility companies; and that in its Activity Register of Treatments, in the version from August 2021, the entry related to the communication of data to "third mobility companies that provide their services jointly" had disappeared.

It can therefore be concluded that with the indicated measures, AVANT carried out the regulatory adjustments required by this Agency.

In accordance with the above, this Agency deems it appropriate to agree to archive the complaints that have led to these proceedings concerning the entity AVANT.

It is also taken into account, (i) that the reported data sharing had ended at the time the complaint was admitted for processing; and (ii) that AVANT has not provided service since February 16, 2023, having been verified that currently the AVANT app does not allow the registration of new users.

Therefore, it is appropriate to archive the proceedings, without prejudice to the Agency applying the investigative and corrective powers it holds, which may carry out subsequent actions related to the data processing referred to in the complaint.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this agreement to AVANT FULLSTEP, S.L., with NIF B67468694, to A.A.A., and to the CITY COUNCIL OF BARCELONA.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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